

STATE OF NEW YORK

6333--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 4, 2025

Introduced by M. of A. WOERNER -- read once and referred to the Committee on Small Business -- recommitted to the Committee on Small Business in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the economic development law, in relation to establishing the small business energy conservation ombudsman program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The economic development law is amended by adding a new
2 section 138-a to read as follows:

3 § 138-a. Small business energy conservation ombudsman program. 1.
4 There is hereby established within the division for small businesses a
5 small business energy conservation ombudsman program. The primary
6 purpose of such program is to represent small businesses on issues
7 relating to state energy policy and the goals of the climate leadership
8 and community protection act.

9 2. The department shall, through the small business energy conserva-
10 tion ombudsman program, provide the following services:

11 a. soliciting input from small businesses on conservation of energy
12 and the promotion of the state's clean energy and climate agenda,
13 including interacting with organizations representing small businesses
14 such as trade associations or other entities;

15 b. participating in, facilitating and promoting the participation of
16 small businesses in the development and implementation of rules and
17 regulations adopted pursuant to the state energy law and other aspects
18 of the climate leadership and community protection act, including but
19 not limited to rules and regulations relating to retrofitting existing
20 commercial buildings and making new construction compliant with section
21 11-104 of the energy law and to the electrification of the transporta-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 tion sector pursuant to article seventy-five of the environmental
2 conservation law;

3 c. participating in and sponsoring meetings with the New York state
4 energy research and development authority, state and local energy and
5 climate agencies, industry groups and small business representatives;

6 d. providing guidance and recommendations to the New York state energy
7 research and development authority and other state agencies on the
8 development, content and operation of the small business energy conser-
9 vation ombudsman program;

10 e. developing and distributing to small businesses information and
11 materials on energy conservation and the requirements and goals of the
12 climate leadership and community protection act as outlined in section
13 3-101 of the energy law;

14 f. aiding in the investigation and resolution of energy conservation
15 complaints and disputes from small businesses against state agencies and
16 local authorities;

17 g. reviewing and providing comments and recommendations to state agen-
18 cies regarding the development and implementation of energy conservation
19 regulations that impact small businesses;

20 h. referring small businesses to specialists for information and
21 assistance on affordable alternative technologies, process changes,
22 products and operational methods to help achieve energy conservation and
23 the goals of the climate leadership and community protection act;

24 i. providing information to small businesses on state-sponsored
25 programs offering financial and technical assistance, and in locating
26 sources of funding for energy conservation; and

27 j. establishing procedures for assuring the confidentiality of infor-
28 mation received from small businesses.

29 § 2. This act shall take effect on the first of January next succeed-
30 ing the date on which it shall have become a law.